

		If plaintiffs choose to amend, plaintiffs are ORDERED to file a red-lined and clean copy of the amended complaint. Clerk to give notice.
9	Richardson Investments LLC vs. Abi-Abdallah 30-2025-01512582-CU-FR-CJC	Demurrer to Complaint and Motion to Strike Complaint Off calendar – defendants dismissed.
10	Dobson vs. Rao 30-2024-01436220-CU-FR-CJC	Motion for Summary Judgment and/or Adjudication Off calendar at request of moving party.
11	RDG Construction Services, Inc. vs. Gold's Drywall, Inc. 30-2023-01360563-CU-BC-CJC	Demurrer to First Amended Cross-Complaint Cross-Defendant/Plaintiff RDG Construction Services, Inc.'s Motion for Summary Adjudication as to the 4th Cause of Action of Cross-Complainant/Defendant Gold's Drywall, Inc.'s (Gold) Cross-Complaint is DENIED. RDG argues the 4th cause of action for recovery of the mechanic's lien release bond must be venued where the property subject to the mechanic's lien is located pursuant to Code of Civil Procedure, section 392. RDG presents no on-point decisional law requiring the result it seeks. This is not an action for mechanic's lien; it is an action for recovery of a release bond. "An owner of real property or an owner of any interest in real property subject to a recorded claim of lien, or a direct contractor or subcontractor affected by the claim of lien, that disputes the correctness or validity of the claim may obtain release of the real property from the claim of lien by recording a lien release bond. The principal on the bond may be the owner of the property, the direct contractor, or the subcontractor." (Civ. Code, § 8424, subd. (a).) A bond is subject to venue under Code of Civil Procedure, section 996.430, subdivisions (b), which provides, "If the bond was given in an action or proceeding, the action shall be commenced in the court in which the action or proceeding was pending. If the bond was given other than in an action or proceeding, the action shall be commenced in any court of competent jurisdiction, and the amount of damage claimed in the action, not the

		amount of the bond, determines the jurisdictional classification of the case.” Thus, venue in Orange County is proper under Code of Civil Procedure section 996.430, subdivision (b). RDG argues a release of mechanic’s lien bond is treated the same as a foreclosure on a mechanic’s lien and cites to <i>Hutnick v. U.S. Fidelity & Guaranty Co.</i> (1988) 47 Cal.3d 456 (<i>Hutnick</i>). The court disagrees <i>Hutnick</i> supports RDG’s position. <i>Hutnick</i> is distinguishable and does not address proper venue for a claim on a bond only. In <i>Hutnick</i>, plaintiffs sought to foreclose on their mechanic’s lien in December 1982. (<i>Hutnick, supra</i>, 47 Cal.3d at p. 460.) On July 26, 1985, a defendant recorded a lien release bond from United States Fidelity and Guaranty Company. (<i>Id.</i> at p. 461.) Plaintiffs amended their complaint to add United, however, failed to assert a cause of action against it and the trial court sustained United’s demurrer. (<i>Ibid.</i>) The trial court sustained a demurrer to the cause of action for recovery of the bond in third amended complaint on the grounds it was untimely because it was not filed within the 6 months of the bond. (<i>Id.</i> at 461-462.) The California Supreme Court reversed the ruling sustaining the demurrer on the grounds filing a bond after an action for foreclosure on the lien does not implicate the statute of limitations to assert a claim for release of the bond because the causes of action are the same in that instance. (<i>Id.</i> at 463-464.) <i>Hutnick</i> addressed whether a claim for release of a mechanic’s lien bond that is filed after a claim for foreclosure of the lien is the same cause of action. (<i>Hutnick, supra</i>, 47 Cal.3d at pp. 463-464.) The court reasoned, “[r]ecognizing that only a single cause of action is involved, courts of other jurisdictions have held that if a mechanic’s lien foreclosure action has been timely commenced and the complaint is then amended to bring in a surety and to obtain relief on a lien release bond, the amendment is not itself subject to any limitations period.” (<i>Id.</i> at p. 463.) “In seeking to enforce their mechanics’ lien first against the lien property and subsequently against the release bond plaintiffs have pursued a single cause of action.” (<i>Ibid.</i>) Here, however, Gold has not sought to foreclose on the mechanic’s lien. It has only sought to recover pursuant to
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		the bond. Thus, <i>Hutnick</i> is distinguishable, because here there is no “single cause of action.” Further, <i>Hutnick</i> does not address where an action to recover only the mechanic’s lien bond is properly venued. Thus, absent authority expanding Code of Civil Procedure, section 392, subdivision (a) to claims only to recover on the bond and not to foreclose the lien, RGB has failed to meet its burden to show it is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) Clerk to give notice.
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